

ELIZABETH II



1988 CHAPTER ix

An Act to repeal the Liverpool Exchange Acts 1859 to 1965; and for connected and other purposes.
[15th March 1988]

WHEREAS—

- (1) The Liverpool Exchange Act 1859 incorporated The Liverpool Exchange Company ("the Company"), conferred upon it powers to maintain, alter, improve, add to or otherwise enlarge the range of buildings in the city of Liverpool called the Liverpool Exchange and the other buildings which then were or might become vested in the Company, to erect and maintain a room to be known as the Exchange News Room and to make byelaws for regulating the use of the Exchange, and imposed upon the Company certain detailed requirements regarding the provision, stopping up and levels of passageways: 1859 c. xxviii (22 & 23 Vict.).
- (2) The Liverpool Exchange Act 1864 conferred further powers upon the Company and made further provision with respect to the Exchange News Room and the site itself, including the maintenance of cart entrances into cellars, vaults and basements from various adjoining streets: 1864 c. cxlv.
- (3) The Liverpool Exchange Act 1930 also conferred additional powers upon the Company and contained provisions with respect to the Exchange News Room: 1930 c. lxiv.
- (4) By the Liverpool Exchange Act 1937 substantial portions of the Liverpool Exchange Acts 1859 to 1930 were repealed and the Company was empowered to sell the undertaking consisting of the Liverpool Exchange, including the various passageways and the area known as the Exchange Flags; the Company and the purchaser of the undertaking were empowered to 1937 c. xiv.

demolish the buildings then constituting the Liverpool Exchange and to erect new buildings; and duties were imposed upon the Company and the purchaser of the undertaking to maintain a news room to be known as the Exchange News Room, to maintain the Exchange Flags for the public use of the merchants, traders and inhabitants of the city of Liverpool and of persons resorting thereto for the purpose of trade and commerce in the manner of an exchange and to maintain as public ways and keep in repair certain passageways. Section 7 of the Act applied the unrepealed provisions of the Liverpool Exchange Acts 1859 to 1930 to the purchaser of the undertaking (and any person deriving title through him), as if he had been named therein instead of the Company:

1859 c. xxviii
(22 & 23 Vict.).

(5) By virtue of the powers conferred by the said Act of 1937 the undertaking was sold to a company which, after the dissolution of the company incorporated under the Liverpool Exchange Act 1859, acquired the name of The Liverpool Exchange Company Limited, and the existing buildings constituting the Liverpool Exchange were demolished and replaced by the present buildings, which consist of Derby House and Sefton House:

1965 c. vi.

(6) The Liverpool Exchange Act 1965 provided for the closure of the Exchange News Room, following a long period of decline in its use:

(7) In 1978 the undertaking consisting of the Liverpool Exchange was acquired by CIN Properties Limited ("CIN"), which is a wholly-owned subsidiary of the British Coal Corporation and the holder of the property investments of the British Coal Staff Superannuation Scheme and the Mineworkers Pension Scheme:

(8) The present buildings comprising the Liverpool Exchange, which contain 350,000 square feet of office space, are substantially outmoded and consequently unattractive to businesses seeking modern, well-appointed offices. Despite a number of recent attempts to refurbish parts of the buildings, a large portion of them remain unoccupied because the standard of accommodation is still below that required by potential tenants. At the present time the city of Liverpool suffers from a general shortage of modern office accommodation, thereby making it difficult to attract to the city new businesses wishing to establish or improve their office facilities:

(9) The cost of carrying out a complete refurbishment of the existing buildings is such that it cannot be commercially justified and, in any event, the configuration of the buildings is likely to prevent the office accommodation from ever being sufficiently attractive to potential tenants. CIN is unwilling to undertake the boarding-up of the buildings, which would substantially reduce the present high level of outgoings, if a satisfactory alternative can be found. It is considered that the only such alternative consists of the demolition of the existing buildings and their replacement with modern accommodation of a high quality. In reaching this conclusion CIN has also had regard to the fact that the structure of the buildings has only a limited life, in that moisture has over the years penetrated the porous facing materials, thereby causing the internal steel framework to rust:

(10) The redevelopment scheme proposed by CIN involves the construction of somewhat smaller buildings than those currently occupying the site, so as to provide approximately 206,000 square feet of office space and 272 car parking spaces, a small conference centre and a leisure area. The proposed new buildings will be in a style in keeping with the surrounding area and, in particular, the reduction in massing and height (compared with the present buildings) will improve the setting of Liverpool town hall and other architecturally and historically important buildings in the vicinity:

(11) It is estimated that construction work in respect of the proposed scheme will provide direct employment for approximately 150 persons and indirect employment for about the same number. At present approximately 1,000 persons are employed by businesses occupying accommodation in the Liverpool Exchange but it is anticipated that some 2,200 employees will be accommodated in the new buildings:

(12) In April 1986 CIN applied to Liverpool City Council for planning permission in order to carry out the proposed scheme and for listed building consent to demolish the present buildings (which lie within the Castle Street Conservation Area). The applications received the support of the Victorian Society, the Georgian Group, the Royal Fine Art Commission, English Heritage and the Liverpool Heritage Bureau:

(13) In November 1986 Liverpool City Council resolved that planning permission and listed building consent in respect of the proposed scheme should be granted, subject to certain conditions:

(14) The design of the new buildings is such that they will encroach upon the existing passageways and also, to a small extent, upon the Exchange Flags, although the quality of pedestrian thoroughfares will be improved by the proposed scheme:

(15) The restrictions relating to the passageways and the Exchange Flags contained in the Liverpool Exchange Acts 1859 to 1937 are no longer necessary, nor is it appropriate that they should be replaced by new statutory requirements. The present system of town and country planning controls is such that the grant of planning permission may be accompanied by conditions and other safeguards for protecting the public interest and, in the present case, Liverpool City Council has determined that planning permission in respect of the proposed scheme should be subject to various detailed conditions, designed to preserve visual amenity, to avoid congestion on certain roads and to avoid a partially completed development. The planning system also contains provision for enabling the Secretary of State to make orders with respect to the stopping-up and diversion of highways, if necessary after holding a public inquiry to consider any objections thereto:

(16) In view of the fact that the proposed scheme is not consistent with certain of the enactments relating to the Exchange Flags and passageways, and in view of the system of controls mentioned in paragraph (15) above, it is desirable for those enactments to be repealed and for all relevant planning and highway matters relating to the scheme to be left to be dealt with under that system:

(17) The remaining provisions of the Liverpool Exchange Acts 1859 to 1965 are either spent or obsolete, and it is therefore expedient that the Acts should be repealed in their entirety:

(18) It is expedient that the other provisions of this Act should be enacted:

(19) The purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. This Act may be cited as the Liverpool Exchange Act 1988.

Short title.

2. The Liverpool Exchange Acts 1859 to 1965 are hereby repealed.

Repeal of
Liverpool
Exchange Acts
1859 to 1965.

